

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF VENTURA

Tentative Ruling

---

**2024CUBT029341: TINA VERDUN vs COSTCO WHOLESALE CORPORATION**  
**09/17/2026 in Department 21**  
**Motion for Summary Judgment**

**Tentative Rulings.** Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to [courtroom21@ventura.courts.ca.gov](mailto:courtroom21@ventura.courts.ca.gov) before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.) If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

**Motion:** Defendant Costco Wholesale Corporation’s Motion for Summary Judgment or in the Alternative Summary Adjudication (*Opposed*)

**Tentative Ruling:**

Plaintiff Tina Verdun was a longtime Costco member and renewed her Executive membership in August 2024 for \$300. She went to the Oxnard warehouse with her husband, Jessie Verdun, as her guest. A problem arose with her membership card, Costco personnel corrected it, and Plaintiff proceeded to shop for three carts of merchandise. (UMF Nos. 6-8.)

A second problem arose at checkout and the encounter escalated. Plaintiff admits using profanity. Jessie Verdun admitted calling the cashier a “cunt” and telling a Hispanic Costco employee to “go back to Mexico.” (Jessie Verdun Depo. 21:20-23, 22:9-18, 23:19-22.) Costco manager Bryan Cisario further declares that Verdun repeatedly used profanity toward employees and called Cisario a “fucking Mexican” and a “wetback.” (Cisario Decl., ¶¶ 12-15.) Plaintiff does not dispute that Jessie Verdun made the statements identified in UMF Nos. 11-13, although she disputes their materiality.

Costco required Plaintiff and her party to leave. After investigating the incident, Costco cancelled Plaintiff's membership on August 16, 2024, and sent her a cancellation letter accompanied by a check covering the full \$300 membership fee and the accrued Executive rebate. Plaintiff received the check but chose not to cash, deposit, endorse, or otherwise negotiate it and instead opted to pursue claims (including unfair business practices, conversion, and unjust enrichment) premised in substantial part on Costco's supposed wrongful retention of her money.

The question on summary judgment is whether all, some, or any of Plaintiff's claims remain legally viable in light of the facts now established through discovery. They do not. The evidentiary record does not support a triable issue as to any of Plaintiff's remaining causes of action, and Costco is entitled to judgment as a matter of law.

### I. Preliminary Matters

The Court exercises its discretion to consider Plaintiff's opposition notwithstanding that it was filed and served three days late. Defendant filed a substantive reply addressing the opposition and identifies no resulting prejudice. (Cal. Rules of Court, rule 3.1300(d); *Levingston v. Kaiser Foundation Health Plan, Inc.* (2018) 26 Cal.App.5th 309, 314.)

As to Defendant's alternative request for summary adjudication, the notice does not separately identify the specific causes of action or issues sought to be adjudicated, and the separate statement does not separately set them out as required by California Rules of Court, rule 3.1350(b) and (d). (*Schmidlin v. City of Palo Alto* (2007) 157 Cal.App.4th 728, 743-744; *Truong v. Glasser* (2010) 181 Cal.App.4th 102, 118.) Because Defendant has established entitlement to summary judgment on the action as a whole, however, the Court need not determine whether those defects would independently require or warrant denial of summary adjudication.

With respect to Costco's refund check, the Court does not find that the uncashed check constituted completed payment. It is nevertheless undisputed that Costco sent Plaintiff a check encompassing the entire \$300 membership fee together with accrued Executive-reward amounts; Plaintiff received the check, understood that it represented the refund of her renewed membership, and elected not to cash, deposit, endorse, or otherwise negotiate it. Plaintiff identifies no deficiency in the amount tendered or condition imposed upon acceptance. Costco tendered everything Plaintiff claims should have been returned. A plaintiff ordinarily may not permit damages to increase through "passive indifference or stubborn insistence upon a conceived legal right." (*Valle de Oro Bank v. Gamboa* (1994) 26 Cal.App.4th 1686, 1691.) Similarly, Plaintiff's unilateral decision not to cash the check therefore does not itself establish continuing wrongful retention or damages attributable to Costco.

### II. Material Facts

#### 1. Defendant's Undisputed Material Facts:

UMF Nos. 1 and 2: DISPUTED; NOT ESTABLISHED as applied to Plaintiff. The evidence establishes the contents of Exhibit A, but does not conclusively establish that this particular version governed Plaintiff's August 2024 renewal.

UMF Nos. 3-14: UNDISPUTED; ESTABLISHED, subject to the qualification that UMF Nos. 3-5 establish the contents of Exhibit A and not independently that those terms governed Plaintiff's membership.

UMF No. 15: DISPUTED; NOT ESTABLISHED as phrased. It is, however, NOT DISPUTED; ESTABLISHED that Costco did not retain or confiscate Plaintiff's cards and that Plaintiff ultimately left the warehouse with them.

UMF No. 16: UNDISPUTED; ESTABLISHED.

UMF No. 17: UNDISPUTED; ESTABLISHED as to Costco's issuance and tender of the check. The fact does not establish that Plaintiff actually received payment.

UMF No. 18: UNDISPUTED; ESTABLISHED. This establishes only that Plaintiff claims no medical-expense damages arising from emotional distress.

2. Plaintiff's Additional Material Facts:

AMF Nos. 1-5: UNDISPUTED; ESTABLISHED.

AMF Nos. 6 & 7: DISPUTED; ESTABLISHED

AMF No. 8: DISPUTED; NOT ESTABLISHED. Plaintiff's declaration states that she requested a refund at the warehouse, but her prior deposition testimony unequivocally states that she did not request a membership refund that day. Plaintiff offers no explanation reconciling the two statements.

AMF Nos. 9 and 10: UNDISPUTED; ESTABLISHED.

AMF No. 11: UNDISPUTED; ESTABLISHED insofar as Plaintiff did not actually receive proceeds from the check. The assertion that the identical \$300 remained continuously in Costco's possession is not independently established.

AMF No. 12: UNDISPUTED; ESTABLISHED as to Plaintiff's factual nonreceipt of continued membership privileges and Executive benefits. The legal effect of Costco's tender is addressed separately.

AMF No. 13: UNDISPUTED; ESTABLISHED.

III. Merits

Third Cause of Action: Business and Professions Code section 17200

Summary judgment is proper on the UCL claim. Business and Professions Code section 17200 prohibits business practices that are unlawful, unfair, or fraudulent. Plaintiff identifies no

predicate statutory violation supporting the unlawful prong. The representation that membership services had corrected Plaintiff's card and that her membership was valid occurred after Plaintiff had already paid the \$300 renewal fee and therefore did not cause her to part with that money.

Nor does the record establish an unfair business practice. Even accepting Plaintiff's account that the cashier behaved rudely and threw the membership card, the undisputed evidence establishes that the encounter escalated, Plaintiff used profanity, and her husband directed vulgar and racially derogatory language at Costco employees. Costco thereafter cancelled the membership and tendered back the entire membership fee. On this record, Costco's conduct does not constitute an unlawful, unfair, or fraudulent business practice within the meaning of section 17200.

#### 1. Fourth Cause of Action: Trespass to Chattels

Summary judgment is proper on the trespass-to-chattels claim. Plaintiff ultimately retained her membership card, and there is no evidence that the card was damaged, destroyed, diminished in value, or substantially withheld from her. Even assuming the cashier temporarily took the card and threw it toward Plaintiff, that conduct does not establish the injury to or substantial interference with a chattel required by *Intel Corp. v. Hamidi* (2003) 30 Cal.4th 1342.

Plaintiff's underlying complaint is that Costco ceased honoring the contractual membership rights represented by the card. Those are contractual rights, not an injury to the physical chattel. To the extent the manner in which the card was allegedly thrown might implicate some other personal tort, no such claim is pleaded here.

#### 2. Sixth Cause of Action: Conversion

Summary judgment is proper on the conversion claim. Plaintiff voluntarily paid Costco \$300 as consideration for renewal of her membership. She did not retain ownership or an immediate possessory right in those particular funds, and there is no evidence the money was held in trust, escrow, segregation, or otherwise for Plaintiff's benefit. At most, the alleged failure to provide the promised performance or return the consideration gives rise to a contractual or restitutionary dispute, not conversion. (*Farmers Ins. Exchange v. Zerin* (1997) 53 Cal.App.4th 445, 451-452; *McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1491-1492.)

Moreover, Costco subsequently tendered the entire \$300 membership fee back to Plaintiff. Plaintiff's decision not to negotiate that check does not transform a contractual refund dispute into the tort of conversion.

#### 3. Seventh Cause of Action: Unjust Enrichment/Restitution

Summary judgment is proper on the unjust-enrichment theory. Even construing the claim as one for restitution in quasi-contract, Plaintiff must establish not merely that Costco received a benefit but that Costco unjustly retained it. (*Lyles v. Sangadeo-Patel* (2014) 225 Cal.App.4th 759, 769.)

No triable issue exists on unjust retention. Costco sent Plaintiff a check returning the entire \$300 membership fee together with the accrued Executive rebate. Plaintiff received and understood the check but elected not to negotiate it. Plaintiff identifies no additional amount Costco was required to return and no condition imposed upon acceptance. Her refusal to accept the complete refund tendered by Costco does not establish unjust retention.

**4. Eighth Cause of Action: Breach of the Implied Covenant of Good Faith and Fair Dealing**

Summary judgment is also proper on the implied-covenant claim. The implied covenant protects the benefits of the parties' agreement but does not supply a general remedy for discourteous conduct or impose substantive contractual duties that the agreement itself does not contain. (*Carma Developers (Cal.), Inc. v. Marathon Development California, Inc.* (1992) 2 Cal.4th 342, 373-374.)

Plaintiff identifies no contractual provision requiring Costco to complete the contemplated purchases notwithstanding the confrontation or prohibiting Costco from requiring Plaintiff and her guests to leave. Nor can the alleged failure to refund support the claim where Costco subsequently tendered Plaintiff the full \$300 membership fee and Plaintiff elected not to negotiate the check. Plaintiff did not plead a separate cause of action for breach of contract arising from the checkout transaction.

Accordingly, Plaintiff has failed to demonstrate a triable issue of material fact as to any remaining cause of action. Defendant Costco Wholesale Corporation is entitled to judgment as a matter of law.

**IV. Disposition**

The Motion for Summary Judgment is GRANTED. The alternative Motion for Summary Adjudication is MOOT.

Defendant shall give notice and shall prepare, serve, and submit a proposed judgment consistent with this ruling.